



SEXUAL EXPLOITATION AND ABUSE PREVENTION

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Enacted

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1. Purpose

This policy applies to all POA Affiliates interacting with Participants, as defined below under [4. Definitions](#). Partners of the Americas (POA) has a zero-tolerance policy toward sexual harassment, exploitation, and abuse. This policy is intended to protect participants of POA programs, and it applies to POA operations both in the U.S. and abroad. This policy is meant to provide a general guidance and to comply with U.S. Government regulations, donor requirements, and all other applicable local laws.

While POA does not tolerate harassment of any nature, there is a distinction between sexual exploitation and abuse (SEA) and sexual harassment. SEA occurs when a position of power (such as being a staff member of an NGO) is used for sexual purposes against a beneficiary or vulnerable member of the community. Sexual harassment occurs when differences in power are abused among staff, to the extent that the harassers conduct or behavior interferes with an individual's work performance, is made a condition of employment, or creates an intimidating, hostile or offensive work environment. Please reference [POA's Sexual Harassment Policy](#) for further questions.

No code or policy can anticipate every situation that may arise. Accordingly, this policy is intended to serve as a source of guiding principles. POA reserves the right to make all decisions on a case-by-case basis.

2. Goal

POA is committed to providing a safe and nurturing working environment, free from sexual abuse, exploitation, and harassment for all program beneficiaries (hereafter referred to as "Participants") who participate in programs and/or events sponsored by the organization. POA commits to supporting victims, improving safeguarding capacity, reporting, investigating, responding to, and preventing sexual harassment and sexual exploitation and abuse. Sexual exploitation and abuse¹ (SEA) of any sort – verbal or physical – is prohibited and will not be tolerated by POA. Moreover, POA will not tolerate acts of SEA by any employee, non-employee, members of the Board of Directors, members of a partner organizations with a contractual relationship to POA, or members of the POA network, including but not limited to

¹ Per the UN Secretary-General's Bulletin ([ST/SGB/2003/13](#)), sexual exploitation is defined as "any actual or attempted abuse of a position of vulnerability, differential power, or trust, for sexual purposes, including, but not limited to, profiting monetarily, socially or politically from the sexual exploitation of another." Sexual abuse is defined as "the actual or threatened physical intrusion of a sexual nature, whether by force or under unequal or coercive conditions."

consultants, volunteers, Chapters, and members (hereafter referred to as a “POA Affiliate”). This policy is intended to provide guidelines and best practices for promoting and maintaining a safe and secure environment in all interactions with Participants while ensuring POA Affiliates act responsibly to protect Participants. It further seeks to minimize the possibility of acts of SEA against Participants.

3. Compliance

This policy applies to all groups, activities, and events sponsored by POA, as well as groups using POA’s facilities who serve Participants. This policy also applies to all POA Affiliates, defined as:

- All staff (full-time, part-time, international, and national), and those engaged on short-term contracts (e.g., consultants, facilitators, mentors, sub-contractors, researchers, etc.);
- Volunteers, board members, trustees; and
- Partner organizations who have a formal/contractual relationship with POA.

3.1 Order of Precedence

If any conflicts occur between this policy and donor requirement, the issue shall be resolved by giving precedence in the following order:

1. Requirements according to the donor (if the POA Affiliate works on a U.S. Government-funded project)
2. POA’s SEA Prevention Policy

4. Definitions

For the purposes of this policy, POA defines the following terms:

- 1) **“POA Affiliate”**: Any employee, non-employee, members of the Board of Directors, individuals of a partner organization with a contractual relationship to POA, or members of the POA network, including but not limited to consultants, volunteers, and Chapter members, implementing programs on behalf of POA HQ.
- 2) **“Beneficiary” or “Beneficiaries”**: A person who receives assistance as part of humanitarian relief or development programs.

- 3) **“Bullying”**: Intentional and aggressive behavior occurring repeatedly against a victim where there is a real or perceived power imbalance, and where the victim feels vulnerable and powerless to defend himself or herself. The unwanted behavior is hurtful: it can be physical, including hitting, kicking, and the destruction of property; verbal, such as teasing, insults, and threats; or relational, through the spreading of rumors and exclusion from a group. The definition of bullying is not limited to overt harassment, but encompasses any repeated actions intended to cause distress physically or emotionally.
- i) **“Cyberbullying”**: the posting or sending of electronic messages, including pictures or videos, aimed at harassing, threatening, or targeting another person. A whole range of social platforms, including chat rooms, blogs, and instant messaging, are used in cyberbullying. Cyberbullying can cause profound harm as it leaves a permanent footprint in cyberspace and can quickly reach a wide audience. Bullying and cyberbullying feed into each other, forming a continuum of damaging behavior.
- 4) **“Child” or “Children”**: A child or children are defined as persons who have not attained 18 years of age, irrespective of local country definitions of when a child reaches adulthood.
- 5) **“Child Safeguarding”**: The set of policies, procedures, and practices employed to ensure that POA is a child-safe organization. Child Safeguarding is making POA safe for children. It involves our collective and individual responsibility and preventative actions to ensure that all children are protected from deliberate or unintentional acts that lead to the risk of or actual harm by POA Affiliates who come into contact with children or impact them through our development interventions, humanitarian responses, and operations. This includes our direct program implementation, work through partners, and management of children’s personal data. For more information, please reference POA’s Child Safeguarding Policy.
- 6) **“Complainant”**: The person reporting (or “making a complaint” about) SEA. This could be the victim or another person who becomes aware of the wrongdoing.
- 7) **“Complaint”**: The report of an incident of SEA.
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- 8) **“Complaint’s procedure”**: A framework that describes the course of action for receiving and processing allegations of SEA. This includes systems for processing complaints within an organization, as well as procedures for beneficiaries to bring complaints forward.
 - 9) **“Economic exploitation”**: The deliberate misplacement, exploitation, or wrongful temporary or permanent use of belongings or money.
 - 10) **“Emotional abuse or ill treatment”**: Constitutes injury to one’s psychological capacity or emotional stability, caused by acts, threats of acts, or coercive tactics. Emotional abuse may include, but is not limited to: Humiliation, control, isolation, withholding of information, or any other deliberate activity that makes one feel diminished or embarrassed.
 - 11) **“Exploitative relationship”**: A relationship that constitutes sexual exploitation (i.e., any actual or attempted abuse of a position of vulnerability, differential power, or trust, for sexual purposes, including, but not limited to: Profiting monetarily, socially, or politically from the sexual exploitation of another.)
 - 12) **“Incident”**: Instances of sexual exploitation and abuse, violence, suicide, accident, or other trauma.
 - 13) **“Participant or Participants”**: POA program beneficiaries
 - 14) **“Partner Organizations”**: Any organization that has a contractual relationship with POA, including subcontractors and sub-awardees.
 - 15) **“Physical abuse”**: Constitutes acts or failures to act resulting in injury (not necessarily visible), unnecessary or unjustified pain or suffering without causing injury, harm, or risk of harm to an individual’s health or welfare, or death. Such acts may include, but are not limited to: Punching, beating, kicking, biting, shaking, throwing, stabbing, choking, or hitting (regardless of object used), or burning. These acts are considered abuse regardless of whether they were intended to hurt the individual.
 - 16) **“Sexual exploitation”**: Any actual or attempted abuse of position of vulnerability, differential power, or trust, for sexual purposes, including, but not limited to: Profiting
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monetarily, socially, or politically from the sexual exploitation of another. Other types of exploitation associated with sexual exploitation include:

- i. **“Transactional sex”**: The exchange of money, employment, goods, or services for sex, including sexual favors other forms of humiliating, degrading, or exploitative behavior. This includes any exchange of assistance that is due to beneficiaries of assistance.
- ii. **“Solicitation of transactional sex”**: Requesting transactional sex.
- iii. **“Digital Exploitation”**: Non-consensual digital, video or audio recording of nudity or sexual activity. Unauthorized sharing or distribution of digital, video or audio recording of nudity or sexual activity²

17) **“Sexual abuse”**: The actual or threatened physical intrusion of a sexual nature, whether by force or under unequal or coercive conditions. Other types of abuse associated with sexual abuse include:

- i. **“Sexual abuse perpetrated by an adult”**: Any contact or activity of a sexual nature that occurs between a child and an adult. This includes any activity which is meant to arouse or gratify the sexual desires of the adult or child.
- ii. **“Sexual abuse perpetrated by another child or children”**: Any contact or activity of a sexual nature that occurs between a child or children and another child when there is no consent, when consent is not possible, or when one child has power over the other child. This includes any activity which is meant to arouse or gratify the sexual desires of any of the children.

18) **“Victim”**: The person who is sexually exploited or sexually abused. The term Victim is not meant to imply a lack of strength, resilience, or capacity to survive.

5. Core Principles

POA Affiliates will respond to Participants with respect, consideration, and equal treatment, regardless of sex, gender, race, religion, sexual orientation, culture, ability, or socio-economic status. Affiliates must conduct themselves in a professional manner as representatives of the organization, consistent with the standards for U.N. employees in Section 3 of the U.N. Secretary General’s Bulletin-Special Measures for Protection from Sexual Exploitation and Sexual Abuse

² <https://www.elon.edu/u/ceie/violence-response/types-of-violence/sexual-violence/>

([ST/SGB/2003/13](#)). Thus, as a condition of their employment or engagement, POA Affiliates must acknowledge and agree to the following core principles which are consistent with Section 3 of the U.N. Secretary-General's Bulletin ([ST/SGB/2003/13](#)):

- 1) Sexual exploitation and abuse by a POA Affiliate constitute acts of gross misconduct and are therefore grounds for termination of employment and/or relationship;
- 2) Sexual activity with children (defined according to the Convention on the Rights of the Child as all persons under the age of 18) is prohibited regardless of the age of majority or age of consent locally. Mistaken belief in the age of a child is not a defense;
- 3) Exchange of money, employment, goods, or services for sex, including sexual favors or other forms of humiliating, degrading, or exploitative behavior, is prohibited. This includes exchange of assistance that is due to beneficiaries;
- 4) Sexual relationships between POA Affiliates and Participants are prohibited since they are based on inherently unequal power dynamics. Such relationships undermine the credibility and integrity of humanitarian aid work;
- 5) Where an POA Affiliate develops concerns or suspicions regarding SEA by another POA Affiliate, they must report such concerns via established organizational reporting mechanisms;
- 6) POA Affiliates are obliged to create and maintain an environment that prevents SEA and promotes the implementation of this code of conduct. Managers at all levels have a particular responsibility to support and develop systems that maintain this environment.

6. Screening and Requirements

To reduce the risk of SEA and protect Participants, POA has established the following practices, which apply to all POA Affiliates.

6.1 Screening

POA will screen individuals and entities who are expected to directly interact with Participants on POA HQ programs as follows:

For Individuals:

- Receive signed SEA Prevention Code of Conduct;

- Run a Visual Compliance check (https://www4.visualcompliance.com/_logon.cfm); and
- If the individual is U.S. based, run a sex offender registry (<https://www.nsopw.gov/>).

If additional verification is required or POA staff has concerns: reference checks by persons outside the organization who know the POA Affiliate.

For Partner Organizations:

- Receive signed SEA Prevention Code of Conduct from entity's legal representative;
- Verify the entity has a policy and procedure in place for SEA Prevention. If not, provide guidance to the entity to establish procedures on SEA Prevention.

All Program Directors are responsible for ensuring that any POA Affiliates on POA HQ programs are screened prior to interacting with participants. POA's HR department is responsible for verifying that POA HQ staff, interns and consultants complete the above requirements as part of the new hire onboarding process.

6.2 Onboarding Requirements

Prior to interacting with Participants, all POA Affiliates must complete the following:

For Individuals:

- Fully read and review the SEA Prevention Policy;
- Sign POA's SEA Prevention Code of Conduct; and
- Annually attend a training/course, all POA Affiliates must choose one of the following options:
 1. Attend a POA SEA Prevention training in-person or watch on-demand online. Trainings will be available at least once a year in-person led by POA's HR staff and/or an external firm. Annual trainings will be recorded and available on-demand via POA's External SharePoint. These trainings will be in English; however, the PowerPoint slides will be available in Spanish and Portuguese.
 2. Complete the online SEA Prevention course provided by [Interaction.org](https://www.interaction.org) annually and send copy of certification to their point of contact at POA. This course is only available in English.
 3. For non-English speaking POA Affiliates as an alternative to the above options, individuals may watch the SEA Prevention video found [here](#), with subtitles in their appropriate language. If individuals select this option, they should send a

confirmation email to their point of contact at POA to confirm that they have watched the video, following up with any questions as applicable.

- Once training is completed, the individual will need to complete a confirmation of training which is available [electronically](#) or hard copy from the individuals point of contact at POA.

For Partner Organizations:

- If able, sign POA's SEA Prevention Code of Conduct; and
- Follow organizational policy and procedure on SEA Prevention

POA's Program Directors are responsible for verifying that POA Affiliates under their program(s) complete the above requirements. POA's HR Department is responsible for verifying that POA HQ staff, interns and consultants complete the above requirements as part of the new hire onboarding process.

6.3 Education and Training Requirements

POA understands the importance of providing adequate training and awareness to staff and POA Affiliates to ensure a clear understanding and effective enforcement of the policy. Therefore, POA commits to:

1. Disseminating and promoting the policy to all POA Affiliates. POA will make the policy available and accessible both in print and electronic formats.
2. Translating and creating versions of the policy in the primary languages (English, Spanish, Portuguese, French, Burmese and other language as appropriate).
3. Providing regular briefings and annual trainings on the policy and incorporating trainings as part of its onboarding process for new hires.
4. Providing training to all POA Affiliates who will teach, work with, counsel, supervise, chaperone, lead, or direct any Participant.
5. Ensuring POA Affiliates attend at least one training on SEA Prevention annually.
6. Providing further training for POA Affiliates with specific responsibilities under this policy. These groups would include anyone working directly with children, and POA's Program Directors and Country Directors designated to receive and respond to SEA complaints.
7. POA's Program Directors are required to:
 - a. Ensure all POA Affiliates review and sign the SEA Prevention Code of Conduct;
 - b. Ensure all staff within their unit attend a SEA Prevention training annually; and

- c. Maintain individual confidential records that include who has attended the training and the date of attendance.

POA will use the [Excel database](#) on SharePoint that HR and Program Directors have access to in order to verify who has attended trainings and when, and whether those people are one-time POA Affiliates or reoccurring. POA will use [PandaDoc](#) to request that POA Affiliates annually sign a SEA Prevention Training Confirmation form, attaching their training certificate as applicable. POA Affiliates will sign the SEA Prevention Code of Conduct when they first start working with POA. HR will conduct annual checks to ensure all POA Affiliates have signed the Code of Conduct and attended a SEA Prevention training.

POA will ensure POA Affiliates have access to materials and resources on the External SharePoint that support understanding and implementation of this policy. POA will also encourage and facilitate the sharing of best practices in implementing the SEA Prevention Policy.

7. Reporting Procedures

POA is committed to protecting any Participant affected by SEA and anyone who submits a report on behalf of a Participant affected by SEA. Therefore, the following procedures were developed to maintain a safe and confidential experience during the reporting process.

7.1 Filing a Report

For Individuals:

- All reports of inappropriate behavior or policy violations with Participants will be taken seriously. If POA Affiliates observe any inappropriate behavior or behavior that may violate any provision of this policy, they must immediately report their observations in one of the following ways:
 1. Contact the immediate supervisor, program, or country director of the alleged offender.
 2. Contact POA's external and confidential hotline, Foster Thomas, at (443)-951-4951. *Foster Thomas is an outside party who will relay any concerns to the Ethics Committee of the Board. Reports may be made anonymously.*
 3. Contact POA's internal HR department at hr@partners.net.
- If the reporter does not receive a response from one of the above personnel within three business days, they should immediately submit a report via another method listed above.

For Partner Organizations:

- In accordance with Section [7.5 Complaints about Partner Organizations](#), Partner Organizations with a contractual relationship to POA upon receiving a SEA violation report, should follow their organization policy. Notification of the alleged SEA violation should be sent to POA's point of contact within three (3) business days.

Malicious reporting of SEA with the intention of harming another person's integrity or reputation amounts to misconduct and is subject to disciplinary action. This is distinct from reports made in good faith based on the judgment and information available at the time of the report, which may not be confirmed by an investigation.

7.2 Response to a Report

Once POA and/or Foster Thomas receives an alleged SEA report, POA will consult with a 3rd party firm to determine if a formal investigation is necessary, and if so, the 3rd party firm will lead the investigation effort in coordination with POA. POA's HR department will notify the complainant if an investigation is deemed necessary by the 3rd party firm. Foster Thomas, POA's HR department, and any supervisors that receive a report are expected to notify the 3rd party firm within three (3) business days. The 3rd party firm is expected to convene a meeting to review the report within three (3) business days of receipt. They will then review the circumstances of the incident and develop a response plan accordingly. If POA and/or the 3rd party firm believe that there are any serious or imminent threats to the safety of the report's subject, appropriate action will be taken immediately to ensure the individuals safety. POA's HR department will continuously update the complainant regarding the status of the investigation.

In the absence of a 3rd party firm, POA will designate a minimum of two members of the Board of Directors to serve in the POA Compliance Committee who will be available to investigate good faith disclosures or reports of any wrongdoing, including anonymously or confidentially. The POA Compliance Committee will lead an investigation, with outside advisory consultation provided as needed. Based on the consultation and investigation, the POA Compliance Committee will render a decision on how to respond and what actions, if any, to take. No prior experience in a legal or investigative field is necessary to serve on the committee. However, POA will allocate funds to support training for the Compliance Committee.

7.3 Confidentially

POA understands due to the nature of incidents related to SEA; action must be taken immediately. SEA investigations will be carried out in a timely, fair, objective, and confidential

manner. This includes the use of appropriate interviewing practice with reports and witnesses. All information and documented evidence will be held securely and in the strictest confidence. The name of the complainant will not be revealed to the person(s) potentially implicated in the allegation or to any other person unless the individual personally authorizes the disclosure of their identity.

Every effort will be made to maintain confidentiality throughout the complaints process. Information that identifies individuals involved in a complaint will be limited to essential personnel and will not be shared further without obtaining the informed consent of those involved, except if someone's life is at risk, a child is at risk, or as required by law in consultation with legal counsel and where safe to do so. Non-identifying information will be shared with authorized people which will include the 3rd party investigation firm, POA's HR manager, Foster Thomas, and local law enforcement if necessary.

All SEA-related information must be kept confidential, identities must be protected to the extent possible, and personal information should be collected and shared only to a limited number of authorized people for the purpose of investigating.

Staff involved in the complaints process will be made aware of the importance of maintaining confidentiality and will be asked to sign a confidentiality agreement. Employees who breach confidentiality may be subject to disciplinary action up to and including termination of employment, and others who work with POA may have their relationship with POA terminated. In some cases, such breaches may constitute breaking the law.

7.4 Retaliation against Complainants, Witnesses, or Victims

POA prohibits any retaliation against anyone who legitimately exercises their rights under this policy or who participates/cooperates in an investigation. There is to be no interference, coercion, discrimination, reprisal, or retaliation against any person for making a valid and truthful complaint or report of a violation. Anyone who believes they are being discriminated against because of legitimately filing a complaint or truthfully participating in an investigation should immediately file a report in one of the following ways:

1. Contact the immediate supervisor, program, or country director of the alleged offender.
2. Contact POA's external and confidential hotline, Foster Thomas, at +1 (443)-951-4951. Foster Thomas is an outside party who will relay any concerns to the Ethics Committee of the Board. Reports may be made anonymously.
3. Contact POA's internal HR department at hr@partners.net.

Anyone who becomes aware of possible harassment or retaliation must immediately file a report so that the organization can investigate in a timely and confidential manner. POA will take action against anyone, whether they are the subject of a complaint or not, who seeks or carries out retaliatory action against complainants, witnesses, or victims. Employees may be subject to disciplinary action, up to and including termination of employment. Others who work with POA may have their relationship with POA terminated.

7.5 Complaints about Partner Organizations

As mentioned in [7.1 Filing a Report](#), Partner Organizations should notify POA's point of contact of any alleged SEA violation within three (3) business days. Where POA receives a complaint about a partner organization, POA will expect the partner to respond safely, quickly, and appropriately. POA will assist the partner to ascertain its reporting obligations.

Where appropriate, POA will work with the partner to address the issue through an appropriate independent investigation. If the outcome is that abuse has occurred, ongoing work with the partner cannot involve the individual(s) concerned. If there is reason to believe that an allegation of abuse has been dealt with inappropriately by a partner, then they risk withdrawal of funding or ending of the relationship.

7.6 Communication

If there is an alleged SEA violation, POA Affiliates are not permitted to send communications to employees, donors, participants, or others about the incident. Due to the sensitivity of the subject matter, all communications must be approved by POA's HR. This especially includes, but is not limited to, communications with the general public or the media.

7.7 Accountability of Management

POA Management is committed to taking all appropriate corrective actions. Disciplinary, legal, or other applicable actions in response to any violation of the SEA Prevention Policy will be taken against any individual who has committed a SEA violation and/or anyone who knew of such a violation and failed to act or report. POA Management will continuously evaluate findings of violations to the SEA Prevention Policy to identify and address gaps and/or weaknesses in applicable policies, procedures, and protocols.